

1	Bhuvneshwari Corporation vs. Pansuria 30-2021-01218873	<u>Motion to Tax Costs</u> Defendant Ken Pansuria's Motion to Strike Costs is DENIED. Defendant Ken Pansuria's Motion to Tax Costs is GRANTED in part and DENIED in part. The court ORDERS that Plaintiff Bhuvneshwari's costs in its Memorandum of Costs be taxed by \$215.76 in service of process fees, \$186.57 in electronic filing or service fees, and \$10,661.68 in travel expenses. <u>Pending Motion</u> Defendant Ken Pansuria (Defendant Pansuria) moves to strike the entirety of \$27,943.86 in costs requested by Plaintiff Bhuvneshwari in its Memorandum of Costs. (See ROA #454.) In the alternative, Defendant Pansuria moves to tax those costs. <u>Seeking Costs and Striking or Taxing Costs</u> Generally, the "prevailing party" is entitled as a matter of right to recover costs of suit in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); <i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 606.) Civil Procedure Code section 1033.5 enumerates the specific costs that are recoverable by the prevailing party in a civil action. (See Code Civ. Proc, § 1033.5.) Section 1033.5 also provides that the court may award costs not expressly described in the statute for expenses that are "reasonably necessary to the conduct of the litigation" and are "reasonable in amount." (Code Civ. Proc, § 1033.5, subd. (c)(2)-(4).) For example, recoverable costs also may include expert witness fees. (See <i>Jensen v. BMW of North America, Inc.</i> (1995) 35 Cal.App.4th 112, 138 ["The legislative history indicates the Legislature exercised its power to permit the recovery of expert witness fees by prevailing buyers under the [Song-Beverly] Act"]; <i>Reveles v. Toyota by the Bay</i> (1997) 57 Cal.App.4th 1139, 1158 [expert witness fees "are allowable 'expenses' under
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		section 1794, subdivision (d)” of the Song-Beverly Act].) While the trial court has discretion to decide whether a cost item was reasonably necessary, the trial court does not have discretion to award a cost item that is not statutorily authorized. (<i>Ladas v. California State Auto. Ass’n</i> (1993) 19 Cal.App.4th 761, 774.) To recover costs, the prevailing party must file and serve a memorandum of costs “within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” (Cal. Rules of Ct., rule 3.1700(a.)) The nonprevailing party then has 15 days after service of the memorandum of costs to file a motion to strike a cost altogether, or to tax the cost and reduce it. (Cal. Rules of Ct., rule 3.1700, subd. (b.)) If the items on a memorandum of costs appear to be proper on their face, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Ass’n, supra</i>, 19 Cal.App.4th at p. 774.; see also <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 [“If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they are not reasonable or necessary.”].) However, once an item is shown to be not reasonable or necessary, it is put in issue and the burden of proof shifts to the party claiming the cost. (<i>Ibid.</i>) This burden is met by providing sufficient detail as to the reasonableness of the costs incurred. (See <i>Thon v. Thompson</i> (1994) 29 Cal.App.4th 1546, 1548-1549.) <u>Costs</u> It is undisputed that Plaintiff was the prevailing party at trial. Therefore, Plaintiff was entitled to recover costs of suit. (See Code Civ. Proc, §§ 1032, subd. (b), 1033.5.)
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		Defendant Pansuria challenges \$1,034.45 in costs related to the depositions of the principals of the Dismissed Defendants, including Gary Patel (\$531) and Yash Patel (\$503.45). The necessity for costs incurred for depositions not used at trial "is always a question for the trial judge." (<i>Moss v. Underwriters' Report</i> (1938) 12 Cal.2d 266, 276.) As with the discovery motions relating to the Dismissed Defendants, Defendant Pansuria contends but submits no evidence that the depositions of the Dismissed Defendants' principals did not relate to Plaintiff's claims against Defendant Pansuria. Defendant Pansuria fails to meet its burden to show that these Deposition Costs were not necessary to the prosecution of this case. The court will deny the motion as to these costs. <u>Service of Process</u> Plaintiff's Memorandum of Costs also claims \$1500.33 in service of process fees. (See ROA # 454.) These charges are specifically allowed by law and the burden is on Defendant Pansuria to show that they were not reasonably necessary. (See Code Civ. Proc., § 1033.5, subd. (a)(4)(B); <i>Citizens for Responsible Development v. City of West Hollywood</i> (1995) 39 Cal.App.4th 490, 506.) Defendant Pansuria argues that \$495.76 in fees for service of process on the Dismissed Defendants and individuals associated it the Dismissed Defendants. Here, cost of serving the summons and complaint upon the Dismissed Defendants was not a necessary cost, as Plaintiff did not need to sue them in order to prosecute his lawsuit against Defendant Pansuria. (Compare <i>Republic Indemnity Co. v. Schofield</i> (1996) 47 Cal.App.4th 220, 229.) However, with respect to the individuals, they were not named as defendants and therefore, the fees may have been for service of deposition subpoenas or other discovery documents rather than service of the summons and complaint. It is Pansuria's burden to show that these fees were not necessary and he has failed to do so. The
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		court will grant the motion as to the service of process fees related to the Dismissed Defendants and deny the motion as to the service of process fees related to the individuals. <u>Fees for Electronic Service or Filing</u> Plaintiff's Memorandum of Costs also requests \$1,191.99 in electronic filing or service costs. (See ROA # 454.) These charges appear on their face to be proper charges so that the burden is on Defendant Pansuria to show that they were not reasonably necessary. Defendant Pansuria challenges \$186.57 in electronic filing fees, arguing Plaintiff's exhibits reveal it incurred only \$1,005.42 in electronic filing or service fees. Defendant Pansuria is correct and the court will grant the motion as to \$186.57 in claimed electronic filing or service costs. <u>Other</u> In the Memorandum of Costs, Plaintiff seeks \$16,696.81 in "other" costs related to out-of-state travel for depositions and trial, as well as fees for mediation. Section 1033.5 states that "[i]tems not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion." (Code Civ. Proc, § 1033.5, subd. (c)(4).) Where a cost is not specifically enumerated as allowable under Section 1033.5(a), but not specifically barred under Section 1033.5(b), the party seeking the cost has the burden to show that the cost was "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc, § 1033.5, subd. (c)(2); see <i>Ladas v. California State Auto. Ass'n</i>, <i>supra</i>, 19 Cal.App.4th at pp. 774-776 [items that are properly objected to are put in issue and burden of proof is on party claiming costs].) Here, Defendant Pansuria challenges \$1,826.53 for Plaintiff's Counsel's travel costs from Montana to Orange County to attend local depositions and \$8,835.15 for Plaintiff's Counsel's travel costs
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		from Montana to Orange County to attend trial. Plaintiff has not shown that these travel costs were reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation. Plaintiff voluntarily chose to retain counsel from Montana but did not necessarily have to do so. The court will exercise its discretion and grant the motion as to these travel costs. Defendant Pansuria shall give notice of this ruling.
2	Carriedo vs. Warden 30-2023-01362615	<u>Motions to Compel Discovery</u> Defendant Wesley Warden's Motion for Order Compelling the Response of Beach Medical Group to Deposition Subpoena for Business Records is taken OFF CALENDAR. Defendant Wesley Warden's Motion for Order Compelling the Response of Kamran Rabbani MD to Subpoena Duces Tecum is GRANTED. Kamran Rabbani MD is ORDERED to serve full, complete, and verified responses and responsive documents to the Deposition Subpoena for Production of Business Records served on July 18, 2024, within 30 days of service of the notice of ruling. <u>Pending Motions</u> Defendant Wesley Warden moves to compel compliance with subpoenas for business records served upon Third-Party Beach Medical Group (Beach Medical) and Third-Party Kamran Rabbani M.D. (Rabbani) <u>Standard to Compel Production of Documents through Subpoena</u> A party wishing to take the oral testimony of a nonparty in a deposition may do so by serving the nonparty with a subpoena a sufficient time in advance to allow the nonparty a reasonable opportunity to travel to the place of deposition. (See Civil Procedure Code, §§ 1985, 1987, 2020.220.)